SAN MARINO UNIFIED SCHOOL DISTRICT

Resolution No. 17-2025/26

RESOLUTION OF THE BOARD OF EDUCATION OF THE SAN MARINO UNIFIED SCHOOL DISTRICT CALLING AN ELECTION TO COMBINE AND RENEW ITS EDUCATION PARCEL TAX, ESTABLISHING SPECIFICATIONS OF THE ELECTION ORDER, AND REQUESTING CONSOLIDATION WITH OTHER ELECTIONS OCCURRING ON NOVEMBER 3, 2026

WHEREAS, the San Marino Unified School District (the "District") is devoted to providing high quality public education in order to enhance the quality of life for residents of the community; and

WHEREAS, the District has implemented a number of changes to generate sufficient funds for its education programs, including initiation of local fund-raising efforts; and

WHEREAS, future funding for the District from the State of California and other sources is projected to be inadequate to provide the level of support to the District's education programs which the citizens of the District expect; and

WHEREAS, the District currently has two special parcel tax authorizations, known as "Measure E" and "Measure R," respectively; and

WHEREAS, Measure E has been in place since 2009, was most recently renewed by voters in 2021, is currently at the level of $1,084 per year assessed against each parcel (except for exemptions, as noted herein), and is due to expire on June 30, 2027; and

WHEREAS, Measure R has been in place since 1991, was most recently renewed by voters in 2025, is currently at the level of $415 per year assessed against each parcel (except for exemptions, as noted herein), and is due to expire on June 30, 2031; and

WHEREAS, the Board of Education of the District (the "Board") proposes combining and renewing Measures E and R into a single locally-controlled special tax for another six years, commencing July 1, 2027, for the purposes set forth in this Resolution to provide greater simplicity, transparency, and fiscal stability for the District and the community and provide more efficient stewardship of taxpayer resource; and

WHEREAS, the proposed measure would continue funding at the existing combined rate of $1,499 per parcel per year, without increasing the current level of taxation, while providing predictable funding to sustain the high-quality educational programs, services, and opportunities that San Marino families and residents value; and

WHEREAS, property owners who currently qualify for a Senior Citizen Exemption, SSI Exemption, or SSDI Exemption would remain exempt and would not be required to reapply for the exemption; and

WHEREAS, California Constitution, article XIIIA, section 4, and Government Code sections 50075 *et seq.*, authorize the District, upon approval of two-thirds of the electorate, to levy qualified special taxes on real property in the District for the purpose

of providing quality educational programs in the District and other lawful purposes of the District; and

WHEREAS, in the judgment of this Board, following a public hearing and comment, it is advisable to request that the Los Angeles County Superintendent of Schools (the "County Superintendent") call an election and submit to the voters of the District the question of whether the District shall levy a qualified special tax within the District, for the purpose of raising revenue for the District; and

WHEREAS, pursuant to the Education Code and Elections Code, such election may be completely or partially consolidated with any other election held on the same day and in the same territory or territory that is in part the same.

NOW, THEREFORE, BE IT RESOLVED, by the Board of Education of the San Marino Unified School District, as follows:

Section 1. Recitals. The Board hereby finds and determines that the foregoing recitals are true and correct.

Section 2. Resolution Constitutes Order of Election. This Resolution shall constitute an order of election pursuant to the Education Code to the County Superintendent to call an election within the boundaries of the District on November 3, 2026.

Section 3. Date and Purpose of Measure. Pursuant to the California Constitution and Government Code, an election shall be held within the boundaries of the District on Tuesday, November 3, 2026, for the purpose of voting on a measure ("Measure") which will be presented to voters in substantially the form attached hereto as **Exhibit A**, containing the question of whether the District shall impose a qualified special tax for the educational purposes stated therein. In addition, the full text of the Measure ("Full Ballot Text") shall appear in the ballot pamphlet in substantially the form attached hereto as **Exhibit B**.

Section 4. Authority for Ordering Election. The authority for ordering the election is contained in the Education Code, the Elections Code, the Government Code, and the California Constitution.

Section 5. Authority for Specifications. The authority for the specification of this election order is contained in the Education Code and the Government Code.

Section 6. Resolution to County Officials. The Secretary of the Board, or designee, is hereby directed to cause copies of this Resolution and order to be delivered **not later than August 7, 2026**, to the County Superintendent, the Los Angeles County Registrar-Recorder/County Clerk (the "County Registrar"), and the Clerk of the Board of Supervisors of Los Angeles County (the "Board of Supervisors").

Section 7. Formal Notice. The County Superintendent is hereby requested to prepare and execute a Formal Notice of Parcel Tax Election and consolidation order in substantially the form attached hereto as **Exhibit C** (the "Formal Notice"), and to call the election by causing the Formal Notice to be posted in accordance with the applicable law no later than August 7, 2026, or to otherwise cause the notice to be published as permitted by law. The Secretary of the Board, on behalf of and as may be requested by

the County Superintendent, is authorized to cause all notices required by law in connection herewith to be published and posted, as the case may be.

Section 8. Conduct of Election.

(a) *Request to County Registrar.* Pursuant to State law, and specifically Elections Code section 5303, the County Registrar, as elections official, is requested to take all steps to hold the election on November 3, 2026, in accordance with law and these specifications. The election may be consolidated with another election as specified below, if such consolidation is feasible and appropriate.

(b) *Voter Pamphlet.* The County Registrar is hereby requested to reprint the Full Ballot Text in substantially the form attached hereto as **Exhibit B** in the voter information pamphlet to be distributed to voters pursuant to the Elections Code. In the event the Full Ballot Text will not be reprinted in the voter information pamphlet in its entirety, the County Registrar is hereby requested to print, immediately below the impartial analysis of the Measure, in no less than 10-point boldface type, a legend substantially as follows:

> *"The above statement is an impartial analysis of Measure ___. If you desire a copy of the Measure, please call the Registrar of Voters at {phone number} and a copy will be mailed at no cost to you."*

(c) *Consolidation.* The County Superintendent and the Board of Supervisors are hereby requested to consolidate the election ordered hereby with any and all other elections as may be held on the same day in the same territory or in territory that is in part the same.

(d) *Canvass and Declaration of Results.* The Board of Supervisors is authorized to canvass the returns of the election and declare the result pursuant to the Elections Code.

(e) *Cost of Election.* Pursuant to Elections Code section 10002, the District shall reimburse Los Angeles County in full for the services performed upon presentation of a bill to the District.

Section 9. Ballot Arguments. The Board President and/or designees are hereby authorized to prepare and file with the County Registrar any ballot argument prepared in connection with the election, including a rebuttal argument, each within the time established by the County Registrar, which shall be considered the official ballot arguments of the Board as sponsor of the Measure and to take all necessary action to prevent inclusion of false and/or misleading information in ballot materials related to the Measure.

Section 10. Collection of the Tax. Beginning July 1, 2027, if the Measure is adopted by voters, the qualified special tax shall be levied and collected by the Los Angeles County Treasurer and Tax Collector ("County Tax Collector") annually for a period of six (6) years at the same time and in the same manner as and along with, and shall be subject to the same penalties as, general *ad valorem* property taxes collected by the County Tax Collector. Unpaid taxes shall bear interest at the same rate as the rate for unpaid *ad valorem* property taxes until paid. With respect to all general property tax matters within its jurisdiction, the County Tax Collector shall make all final determinations of tax exemption or relief for any reason, and that decision shall be final

and binding. With respect to matters specific to the levy of the qualified special tax, including the exemptions, the application of the definition of "Parcel of Taxable Real Property" to any parcel(s), the legality or validity of the qualified special tax, or any other disputed matter specific to the application of the qualified special tax, the decisions of the District shall be final and binding.

The Measure E special tax, adopted by voters in June 2021, will continue to be collected until June 30, 2027, in accordance with its terms.

If the Measure is adopted by voters, the Measure R special tax, adopted by voters in June 2025, will cease to be collected on or after July 1, 2027; otherwise, if the Measure is not adopted, the Measure R special tax will continue to be collected until June 30, 2031, in accordance with its terms.

Section 11. Appropriations Limit. The Board shall provide in each year for an increase in the District's appropriations limit as shall be necessary to ensure that the proceeds of the qualified special tax may be spent for its authorized purposes.

Section 12. Official Actions. The members of the Board, the District Superintendent, the Assistant Superintendent of Business Services, or their designees, are each hereby authorized to execute any other document and to perform all acts necessary to place the Measure on the ballot, including making alterations to the Measure and Full Ballot Text stated in Exhibits A and B hereto, and to this Resolution, to comply with requirements of law and election officials or which are, in the judgment of the Superintendent and/or Board President, in the best interests of the District.

Section 13. Effective Date. This Resolution shall take effect from and after its adoption.

**** REMAINDER OF PAGE INTENTIONALLY BLANK ****

The foregoing Resolution was adopted by the Board of Education of the San Marino Unified School District at a regular meeting held on June 23, 2026, by the following vote:

AYES: 5

NOES: _____

ABSTAIN: _____

ABSENT: _____

SAN MARINO UNIFIED SCHOOL DISTRICT

By: _____
Francesca Gill,
President, Board of Education

ATTEST:

By: _____
Linda de la Torre,
Secretary, Board of Education

EXHIBIT A

SUMMARY OF MEASURE

The Measure shall be summarized in the following form, and the County Registrar is requested to cause this summary of the Measure to appear on the ballot:

****** BEGIN BALLOT LABEL ******

San Marino Unified School District Quality Education Measure Without increasing the existing rates and to protect/maintain quality education programs, classroom instruction, prevent class size increases or teaching position reductions, attract/retain high-quality teachers/employees, support advanced programs in math, science, engineering, technology, shall San Marino Unified School District's measure to combine and renew their existing parcel taxes for 6 years at $1,499 (combined) with senior exemptions, raising approximately $6,100,000 annually, annual adjustments, requiring spending disclosure be adopted?

****** END BALLOT LABEL ******

EXHIBIT B

FULL BALLOT TEXT

****** BEGIN FULL TEXT ******

SAN MARINO UNIFIED SCHOOL DISTRICT

Measure ___
[*letter designation to be assigned by County Registrar*]

FINDINGS

To protect high-performing San Marino schools, the San Marino Unified School District Board of Education (the "Board") has proposed that our community vote to maintain a stable funding source that cannot be taken away by the State, by combining and renewing the District's two existing parcel taxes into one. Stable, local funding will protect quality educational programs in our schools.

The District is devoted to providing high quality education in order to enhance the quality of life for residents of the community. The District has implemented a number of changes to generate sufficient funds for its education programs, including initiation of local fund-raising efforts; however, future funding for the District from the State of California and other sources is projected to be inadequate to provide the level of support to the District's education programs which the citizens of the District expect.

The District currently has two special parcel tax authorizations, known as "Measure E" and "Measure R," Measure E has been in place since 2009, was most recently renewed by voters in 2021, is currently at the level of $1,084 per year assessed against each parcel, and is due to expire on June 30, 2027. Measure R has been in place since 1991, was most recently renewed by voters in 2025, is currently at the level of $415 per year assessed against each parcel, and is due to expire on June 30, 2031.

The Board further finds that combining and renewing Measures E and R into a single locally-controlled parcel tax will provide greater simplicity, transparency, and fiscal stability for the District and the community and provide more efficient stewardship of taxpayer resources.

The proposed measure would continue funding at the existing combined rate of $1,499 per parcel per year, without increasing the current level of taxation, while providing predictable funding to sustain the high-quality educational programs, services, and opportunities that San Marino families and residents value. Accordingly, the Board proposes to combine and renew the levy of the special taxes currently authorized under Measures E and R for an additional six-year period commencing July 1, 2027. Property owners who currently qualify for a Senior Citizen Exemption, SSI Exemption, or SSDI Exemption would remain exempt and would not be required to reapply for the exemption.

TERMS

Moneys raised under this Measure shall be authorized to be used only for the following purposes, in accordance with priorities established by the Board and to the extent of available funds:

- To retain and attract the best qualified teachers and counselors, ensure the continuation of teaching positions at both elementary and secondary levels, and prevent the elimination of teachers specializing in the area of math and science;
- To support the maintenance of existing educational programs at current levels, preserve core academic curriculum in English, math, social studies, history, and science, sustain visual and performing arts programs, world languages, physical education, and maintain advanced placement and honors courses;
- To maintain reduced class size;
- To maintain district-wide school library media specialists; and
- To maintain adequate technology systems for all students by retaining technology service technicians, and fund classroom technology, computer systems, and personnel, as well as academic and college counseling positions.

A. Amount and Basis of Tax

This Measure shall authorize the District to annually levy a qualified special tax of $1,499 per Parcel of Taxable Real Property beginning July 1, 2027, and continuing for a period of six (6) years ("Parcel Tax").

Beginning on July 1, 2028, and each year thereafter, the rate of the Parcel Tax shall be increased from the rate levied in the prior tax year by a cost-of-living adjustment equal to the lesser of (i) three percent or (ii) the annual average percentage change in the Los Angeles Metropolitan Statistical Area Consumer Price Index over the prior twelve months, as of December 1 of the prior fiscal year, as published by the U.S. Bureau of Labor Statistics. If, in any given year, such index is not available, then the District shall instead use the Consumer Price Index – All Urban Consumers (CPI-U) for purposes of determining the increased rate of the Parcel Tax in accordance with the foregoing formula. The Board, in its discretion, may levy a reduced adjusted amount for inflation in any year in which it deems such reduced adjusted amount sufficient and appropriate to meet the purposes stated above, or believes such reduced adjusted amount is appropriate in response to State budget changes.

The Parcel Tax is estimated to raise $6,100,000 in annual local funding for District schools. The amount of annual local funding raised by this Parcel Tax will vary from year-to-year due to changes in the number of parcels subject to the levy and cost-of-living adjustments.

To the extent allowed by law, for the purposes of the Parcel Tax, "Parcel of Taxable Real Property" shall be defined as:

(i) Any unit of real property wholly or partially in the District that receives a separate tax bill for *ad valorem* property taxes from the County of Los Angeles.

(ii) All property that is otherwise exempt from or upon which are levied no *ad valorem* property taxes in any year shall not be considered a Parcel of Taxable Real Property for purposes of the Parcel Tax in such year.

(iii) Multiple parcels which are contiguous, under identical ownership, and used solely for owner-occupied single-family residential purposes, may, pursuant to procedures determined by the District, be treated as a single Parcel of Taxable Real Property for purposes of the Parcel Tax.

If any portion of this definition is deemed contrary to law, the Board declares and the voters by approving the Measure concur, that every other section and part of this definition has independent value, and the Board and voters would have adopted each other section and part hereof regardless of every other section or part hereof. If all sections or parts of this definition are deemed contrary to law, "Parcel of Taxable Real Property" shall be defined as any real property wholly or partially in the District assigned an assessor's parcel number. The Board declares and the voters by approving the Measure concur, they understand and intend that the modifications allowed by this paragraph would result in an increase in the number of parcels subject to the Parcel Tax.

B. Exemptions

Under procedures and deadlines adopted by the District, an exemption from payment of the Parcel Tax may be granted on any parcel owned by one or more persons who is/are:

1. Sixty-five (65) years of age or over before June 30 of the fiscal year immediately preceding the year in which the tax would apply and occupying said parcel as a principal residence ("Senior Citizen Exemption");

2. Receiving Supplemental Security Income for a disability, regardless of age and occupying said parcel as a principal residence ("SSI Exemption"); or

3. Receiving Social Security Disability Insurance benefits, regardless of age, whose yearly income does not exceed 250 percent of the 2012 federal poverty guidelines issued by the United States Department of Health and Human Services and occupying said parcel as a principal residence ("SSDI Exemption").

Exemptions granted under prior qualified special taxes levied by the District will not require re-approval, subject to the District's right to verify a property owner's continuing qualification for exemption.

The District may establish administrative procedures to periodically verify the continuance of any previously granted exemption.

The District shall annually provide to the appropriate county official a list of parcels that the District has approved for an exemption.

C. Claim / Exemption Procedures

With respect to all general property tax matters within its jurisdiction, the appropriate county tax official shall make all final determinations of tax exemption or relief for any reason, and that decision shall be final and binding. With respect to

matters specific to the levy of the Parcel Tax, including the exemptions provided by the Parcel Tax, the application of the definition of "Parcel of Taxable Real Property" to any parcel(s) or any other disputed matter specific to the application of the Parcel Tax, the decisions of the District shall be final and binding. In the latter case, a claim for a refund of the special tax shall comply with the following and any additional procedures established by the Board:

1. All claims shall be filed with the Superintendent of the District no later than one year after the date the tax was paid. The claimant shall file the claim within this time period and the claim shall be finally acted upon by the Board as a prerequisite to bringing suit thereon.

2. Pursuant to California Government Code Section 935(b), the claim shall be subject to the provisions of California Government Code Sections 945.6 and 946.

3. The Board shall act on a timely claim within the time period required by Government Code Section 912.4.

4. The procedure described herein, and any additional procedures established by the Board, shall be the exclusive claims procedure for claimants seeking a refund, reduction or re-computation of the special tax. Whether any particular claim is to be resolved by the District or by the County shall be determined by the District, in coordination with the County, as necessary.

D. Appropriations Limit

Pursuant to California Constitution and applicable laws, the appropriations limit for the District will be adjusted periodically by the aggregate sum collected by levy of the Parcel Tax.

E. Accountability Measures

1. *Specific Purposes*. The proceeds of the Parcel Tax shall be applied only to the specific purposes identified above. The proceeds of the Parcel Tax shall be deposited into a fund, which shall be kept separate and apart from other funds of the District, pursuant to the Government Code.

2. *Annual Reports.* No later than December 31 of each year while the Parcel Tax is in effect, the District shall prepare and file with the Board a report detailing the amount of funds collected and expended during the prior fiscal year, and the status of any project authorized to be funded by this Measure. The report may relate to the calendar year, fiscal year, or other appropriate annual period, as said officer shall determine, and may be incorporated into or filed with the annual budget, audit, or other appropriate routine report to the Board.

F. Protection of Funding

Current law forbids any decrease in State or federal funding to the District resulting from the adoption of an education parcel tax. However, if any such funding is reduced or affected because of the adoption of this local funding measure, then the Board may reduce the amount of the Parcel Tax levied as necessary in order to restore

such State or federal funding and/or maximize the District's fiscal position for the benefit of the educational program. As a result, whether directly or indirectly, no funding from this Measure may be taken away by the State or federal governments.

G. Severability

The Board hereby declares, and the voters by approving this Measure concur, that every section and part of this Measure has independent value, and the Board and the voters would have adopted each provision hereof regardless of every other provision hereof. Upon approval of this Measure by the voters, should any part of the Measure or taxing formula be found by a court of competent jurisdiction to be invalid for any reason, all remaining parts of the Measure or taxing formula hereof shall remain in full force and effect to the fullest extent allowed by law.

****** END FULL TEXT ******

EXHIBIT C

FORMAL NOTICE OF QUALIFIED SPECIAL TAX ELECTION

NOTICE IS HEREBY GIVEN to the qualified electors of the San Marino Unified School District, that in accordance with the provisions of the Education Code and the Government Code of the State of California, an election will be held on November 3, 2026, for the purpose of submitting to the qualified electors of the District the proposition summarized as follows:

> **"San Marino Unified School District Quality Education Measure** Without increasing the existing rates and to protect/maintain quality education programs, classroom instruction, prevent class size increases or teaching position reductions, attract/retain high-quality teachers/employees, support advanced programs in math, science, engineering, technology, shall San Marino Unified School District's measure to combine and renew their existing parcel taxes for 6 years at $1,499 (combined) with senior exemptions, raising approximately $6,100,000 annually, annual adjustments, requiring spending disclosure be adopted?"

By execution of this formal Notice of Election the County Superintendent of Schools of Los Angeles County orders consolidation of the election with such other elections as may be held on the same day in the same territory or in territory that is in part the same.

The County Superintendent of Schools of Los Angeles County, by this Notice of Election, has called the election pursuant to a Resolution and Order of the Board of Trustees of the San Marino Unified School District adopted June 23, 2026, in accordance with the provisions of State law.

IN WITNESS WHEREOF, I have hereunto set my hand this day, August 7, 2026.

/s/
County Superintendent of Schools
Los Angeles County, California